

Sushil Kumar Shukla vs State Of U.P. & Others on 4 January, 2010

Author: V.K. Shukla

Bench: V.K. Shukla

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Court No.21

Civil Misc. Writ Petition No.61603 of 2009
Sushil Kumar Shukla
Versus
State of U.P. and another

Hon'ble V.K. Shukla, J.

Present writ petition has been filed, questioning the validity of order dated 23.10.2009 passed by the District Magistrate, Allahabad, proceeding to reject the application for grant of fire arm licence to the petitioner.

Brief background of the case is that the petitioner, who is a practicing lawyer of this Court, with registration number UP/3170/99 with the U.P. Bar Council, was born and studied in district Kanpur Nagar. After having enrolled himself as an Advocate with the U.P. Bar Council in the year 1999, he shifted to Allahabad city and since then he has been residing here. Since the financial year 2000-01, the petitioner has been continuously paying income tax, and further he has purchased residential properties, Flat No. SF-1 10-E, Dr. Lohia Marg, Civil Lines, Police station Civil Lines, Allahabad in the year 2005, and the petitioner has given details of two other properties, which had been purchased by him jointly with his wife from Allahabad Development Authority. Petitioner applied for grant of firearm licence, revolver by moving application dated 12.01.2006 along with stipulated fee and enclosures of documents such as copies of High School Certificate, certificate of residence, I.D. of Bar Council, PAN Card, Income Tax returns and other documents . Respective reports were called for from Allahabad as well as from Kanpur, and thereafter, matter was kept pending, and in this background, the petitioner was compelled to file writ petition No.39085 of 2008 before this Court, and this Court asked the Licensing authority to decide the matter within three months. The petitioner served certified copy of the said order on the licensing authority, and thereafter when within the time frame provided for, no decision was taken, contempt petition No.3906 of 2009 was filed, then order impugned has been passed, proceeding to reject the application for grant of firearm licence.

Pleadings inter se parties have been exchanged, and thereafter, present writ petition has been taken up for final hearing and disposal with the consent of the parties.

Sri Sushil Kumar Shukla, appeared in person and contended with vehemence that in the present case, Licensing Authority has totally misread the statutory provisions, inasmuch as, at no point of time, petitioner had ever made any wrongful disclosure. The Licensing Authority failed to appreciate that requirement of rule was "ordinarily residing in the said district" and the reports submitted clearly established that place of petitioner's residence was Allahabad, as such the District Magistrate Allahabad had full authority to consider the application for grant of firearm licence, and as such the order is based on unsustainable ground and is liable to be quashed.

Countering the said submissions, learned Standing Counsel, on the other hand, contended that rightful decision has been taken in the matter and no interference be made with the order impugned.

After respective arguments have been advanced, factual position which emerges in the present case is that in column No.3 of the application, which has been annexed as Annexure-5 to the writ petition, the petitioner has clearly mentioned the place of his birth; in column No.5, the petitioner has given his current address and in column No.6, which was in respect of permanent address, the petitioner had mentioned that it was the same address, as it was his current address. The impugned order proceeds to mention that in enquiry, it has come that the petitioner is original resident of 295, Rail Bazar, Kanpur Nagar and has passed his High School from the centre Maheshwari Inter College, Chawla Mandi, Kanpur, and as such petitioner has concealed his original residence, and this non-disclosure of correct address is in violation of Rule 51 of the Arms Rules, 1962 and the same is punishable under Section 30 of the Arms Act.

At this juncture, Section 13 which deals with grant of licences and Rule 51 of the Arms Rules, 1962, which deals with application for licence, are being looked into and for ready reference these provisions are being extracted below:

"Section 13 "13. Grant of licences.-(1) An application for the grant of a licence under Chapter II shall be made to the licensing authority and shall be in such form, contain such particulars and be accompanied by such fee, if any, as may be prescribed.

(2) On receipt of an application, the licensing authority shall call for the report of the officer in charge of the nearest police station on that application and such officer shall send his report within the prescribed time.

(2A) The licensing authority, after such inquiry, if any, as it may consider necessary, and after considering the report received under sub-section (2), shall, subject to the other provisions of this Chapter, by order in writing either grant the licence or refuse to grant the same.

Provided that where the office in charge of the nearest police station does not send his report on the application within the prescribed time, the licensing authority may, if it deems fit, make such order, after expiry of the prescribed time, without further waiting for that report.

(3) The licensing authority shall grant -

(a) a licence under Section 3 where the licence is required-

(i) by a citizen of India in respect of a smooth bore gun having a barrel of not less than twenty inches in length to be used for protection or sport or in respect of a muzzle loading gun to be used for bona fide crop protection.

Provided that where having regard to the circumstances of any case, the licensing authority is satisfied that a muzzle loading gun will not be sufficient for crop protection, the licensing authority may grant a licence in respect of any other smooth bore gun as aforesaid for such protection, or

(ii) in respect of a point 22 bore rifle or an air rifle to be used for target practice by a member of a rifle club or rifle association licensed or recognized by the Central Government.

(b) a licence under Section 3 in any other case or a licence under Section 4, Section 5, Section 6, Section 10 or Section 12, if the licensing authority is satisfied that the person by whom licence is required has a good reason for obtaining the same."

"Rule 51 "51. Application for licence.- Every application for the grant of a licence under these rules-

- (a) shall be submitted in Form "A";
- (b) may be presented by the applicant in person or sent through

the medium of post office or otherwise to the licensing authority, as far as possible, having jurisdiction in respect of the place where he ordinarily resides or has his occupation.

(c) shall contain all such information as is necessary for the consideration of the application; and in particular-

(i) where the application is for the acquisition, possession and carrying of arms and ammunition for crop protection, shall specify details of the land and cultivation requiring protection and area within which the arms and ammunition are required to be carried;

(ii) where the application is for a licence for import or for transport or for export and re-import, or for import, transport and re-export, of arms and ammunition, shall specify the place of destination, the route, the time likely to be occupied in the journey and the quantity, description and price of each kind of arms or ammunition

in respect of which the licence is required and the purpose for which they are intended;

(d) where the grant of licence requires a certificate of no objection from some other authority as provided in Rule 50, shall state whether such certificate has been obtained and, if so, shall be supported by evidence thereof;

(e) where an application is for the grant of licence in Form II, form III, Form III-A, Form-IV, form V, from a person other than a bona fide tourist as defined in Section 10 (1) (b) of the Act it shall be accompanied by two passport size copies of the latest photograph of the applicant.

Provided that-

(i) an application by a member of the armed forces of the Union shall be made through his commanding officer to the licensing authority having jurisdiction in respect of the place to which he is for the time being posted; and

(ii) the licensing authority may, in accordance with any instructions issued by the State Government in respect of all or any class of firearm require the personal attendance of the applicant before granting or renewing the licence applied for."

A bare perusal of the provisions afore-quoted would go to show that an application for the grant of firearm licence under Chapter II has to be made to the licensing authority and the same has to be in such form, contain such particulars and be accompanied by such fee, as may be prescribed. Rule 51 provides that the application has to be presented by the applicant in person or sent through the medium of post office or otherwise to the licensing authority, as far as possible, having jurisdiction in respect of the place where he ordinarily resides or has his occupation.

Neither the Act nor the Rules prescribe in respect of permanent domicile of the incumbent in question in case he intends to get firearm licence inasmuch fire arm licence can be obtained from the place where the incumbent ordinarily resides or has his occupation after furnishing particulars as envisaged under Schedule III, Form 'A'. In the said application Form, there are four parts required to be filled. Part A deals with identity of applicant. Part B deals with other particulars of the applicant. Part C deals with particulars of licence. Part D deals with requirement of licence for import/export/transport/re-export and re-import. Declaration has to be made that all averments are correct, true and complete to the applicant's knowledge.

In the present case position is that the case of the petitioner is that he has his occupation at Allahabad and further his precise case is that he ordinarily resides at Allahabad in normal course of business after he has got himself enrolled as an Advocate with the U.P. Bar Council. In the application which has been annexed as Annexure-5, column 6 only talks of permanent address and it does not mean original domicile. Once the petitioner has given his permanent address and the house which he has purchased at Allahabad, then in this background to say that the petitioner has

concealed his original domicile, is totally unwarranted presumption on the part of the licensing authority.

The word "residence" has been subject matter of interpretation by Apex Court in various cases. In the case of Smt. Jeewanti Pandey v. Kishan Chandra Pandey, AIR 1982 SC 3, while considering the provisions of Hindu Marriage Act, wherein jurisdiction is also related to ordinary place of residence . Therein it has been held as follows:

"8. In arriving at that conclusion, the High Court was obviously influenced by the fact that the parties never had any permanent residence. While it is true that mere casual or temporary visits do not constitute 'residence' within the meaning of cl. (ii) of Section 19 of the Act, it cannot be said that the parties came to Delhi on a temporary sojourn for a day or two. The appellant's case is that she had left her parental home at village Bagyan as her father did not consent to the marriage. If that be so, the irresistible conclusion is that she came to reside with the respondent at Delhi. It was frankly conceded before us that the finding of the High Court that she should be so regarded as having her residence at village Bagyan in the district of Pithoragarh is based on no evidence. It is agreed on all hands that ever since the marriage, the appellant has been residing with her uncle Basant Kumar at Lajwanti Garden, New Delhi.

12. In order to give jurisdiction on the ground of 'residence'. something more than a temporary stay is required. It must be more or less of a permanent character, and of such a nature that the court in which the respondent is sued, is his natural forum. The word 'reside' is by no means free from all ambiguity and is capable of a variety of meanings according to the circumstances to which it is made applicable and the context in which it is found. It is capable of being understood in its ordinary sense of having one's own dwelling permanently, as well as in its extended sense. In its ordinary sense residence, is more or less of a permanent character. The expression 'resides' means to make an abode for a considerable time: to dwell permanently or for a length of time; to have a settled abode for a time. It is the place where a person has a fixed home or abode. In Webster's Dictionary, 'to reside' has been defined as meaning 'to dwell permanently or for any length of time', and words like 'dwelling place' or 'abode' are held to be synonymous. Where there is such fixed home or such abode at one place the person cannot be said to reside at any other place where he had gone on a casual or temporary visit, e.g. for health or business or for a change. If a person lives with his wife and children, in an established home, his legal and actual place of residence is the same. If a person has no established home and is compelled to live in hotels, boarding houses or houses of others, his actual and physical habitation is the place where the actually or personally resides.

13. It is plain in the context of cl. (ii) of Section 19 of the Act, that the word 'resides' must mean the actual place of residence and not a legal or constructive residence, it certainly does not connote the place of origin. The word 'resides' is a flexible one and

has many shades of meaning, but it must take its colour and content from the context in which it appears and cannot be read in isolation. It follows that it was the actual residence of the appellant at the commencement of the proceedings, that had to be considered for determining whether the District Judge, Almora, had Jurisdiction or not. That being so, the High Court was clearly in error in upholding the finding of the learned District Judge that he had jurisdiction to entertain and try the petition for annulment of marriage filed by the respondent under Section 12 of the Act."

Hon'ble Apex Court in the case of Dr. Yogendra Bharadwaj v. State of U.P. And others, AIR 1991 SC 356, has considered the meaning of word "domicile" vis-a-vis bona fide residence. Paragraphs 8, 9, 10, 11, 15, 16, 17, 18, 21, 23 of the aforesaid judgment are being quoted below:

"8. A person is treated as a 'bona fide resident of Uttar Pradesh' in terms of sub-clause (a) and (b) of Cl. (4) by reason of either his 'domicile' or 'residence' in that State. While sub-clause

(a) speaks of the domicile of the candidate and his father, sub-

clause (b) speaks of a person, whose father was not domiciled in the State and who himself has resided for not less than five years in the State. The concept of 'domicile' is irrelevant to the construction of sub-clause (b) in respect of the residence qualification of the candidate. All that it requires is his requisite residence.

9. Domicile which is a private international law or conflict of laws concept identifies a person, in cases having a foreign element, with a territory subject to a single system of law, which is regarded as his personal law. A person is domiciled in the country in which he is considered to have his permanent home. His domicile is of the whole country, being governed by common rules of law, and not confined to a part of it. No one can be without a domicile and no one can have two domiciles.

10. A domicile of origin is attributed to every person at birth by operation of law. This domicile is not decided by his place of birth, or by the place of residence of his father or mother, but by the domicile of the appropriate parent at the time of his birth, according as he is legitimate or illegitimate. It is possible for the domicile of origin to be "transmitted through several generations no member of which has ever resided for any length of time in the country of the domicile of origin. " (See Dicey and Morris, The Conflict of Laws, Vol 1 Rule 9, p. 108). The domicile of origin continues until he acquires a domicile of choice in another country. Upon abandonment of a domicile of choice, he may acquire a new domicile of choice, or his domicile of origin, which remained abeyance, revives. The burden of proving change of domicile is on him who asserts it. The domicile of origin is more tenacious.

"Its character is more enduring, its hold stronger and less easily shaken off." Per Lord Macnaghten Winans v. A.G., (1904) AC 287,

290. The burden of proving that a domicile of origin is abandoned is indeed much heavier than in the case of a domicile of choice. No domicile of choice can be acquired by entering a country illegally.

11. The domicile of choice is a combination of residence and intention. Residence which is a physical fact means "bodily presence as an inhabitant" (Re Newcomb, (1908) 192 NY 238 84 NE 950. See Dicey, op. cit). Such residence must be combined with intention to reside permanently or for an unlimited time in a country. It is such intention coupled with residence that acquires him a new domicile. It is immaterial for this purpose that the residence is for a short duration, provided it is coupled with the requisite state of the mind, namely the intention to reside there permanently. "If a man intends to return to the land of his birth upon a clearly foreseen and reasonably anticipated contingency"

(Re Fuld's Estate (No. 3) 1968 (P) 675.), such as, the end of his studies, he lacks the intention required by law. His "tastes, habits, conduct, actions, ambitions, health ' hopes, and projects"

(Casdagli v. Casdagli, (1919) AC 145, 178) are keys to his intention. "That place is properly the domicile of a person in which he has voluntarily fixed the habitation of himself and his family, not for a mere special and temporary purpose, but with a present intention of making it his permanent home, unless and until something (which is unexpected or the happening of which is uncertain) shall occur to induce him to adopt some other permanent home". (Lord v. Colvin, (1859) 4 Drew 366 at 376).

15. 'Domicile' for the purpose of cl. 4 must, nevertheless, be understood and applied in a limited sense and in contradistinction to 'residence', for that clause uses both the expressions and demands compliance with either of them with reference to the State of Uttar Pradesh. Unlike 'residence' which is only bodily presence, 'domicile' in this context must necessarily mean physical residence coupled with the intention to settle down in Uttar Pradesh, although, being confined to a particular region rather than the whole area of operation of the territorial legal system and lacking in any foreign complexion or unconcerned with any foreign element, the animus manendi required for the purpose of Cl. 4 is much less in quality and contents than what is required in Private International Law. Sub-cl. (a) of Cl. 4 prescribes no minimum length of residence or minimum degree of intention, and, however short or insignificant the two elements may be, their combination ' in whatever proportion, is sufficient to constitute 'domicile' for the purpose of cl. 4(a).

16. In the present case, the appellant came to the State of Uttar Pradesh with a predetermined mind, namely, to complete the chosen course of studies and return to the State which had nominated him for the purpose. Having regard to the time and duration, the object and obligation, and the uncontroverted facts, the appellant was undoubtedly a bona fide student who resided in Uttar Pradesh for over five years, but whose residence did not acquire the attributes of 'domicile' within the meaning of cl. 4(a). The question then is whether the appellant is a 'bona fide resident of Uttar Pradesh' within the meaning of clause 4(b).

17. Residence is a physical fact. No volition is needed to establish it. Unlike in the case of a domicile of choice, animus manendi is not an essential requirement of residence. Any period of physical presence, however short, may constitute residence provided it is not transitory, fleeting or casual. Intention is not relevant to prove the physical fact of residence except to the extent of showing that it is not a mere fleeting or transitory existence. To insist on an element of volition is to confuse the features of 'residence' with those of 'domicile'.^{1 1} For an interesting discussion on The Meaning of Residence, see J. D. McClean, International and Comparative Law Quarterly (1962) Vol. II pp. 1153 et seq.

18. A person is ordinarily resident in a country if his residence there is no casual or uncertain, but is in the ordinary course of his life.² A man may be ordinarily resident or habitually resident in more than one place. While 'ordinary residence' is the physical residence in regard to which intention is irrelevant, except to show that the residence is not merely fleeting, 'habitual residence' may denote a quality of endurance longer than ordinary residence, although duration, past or prospective, is only one of the many relevant factors, and there is no requirement of any particular minimum period.

21. While residence and intention are the two essential elements constituting the 'domicile of choice', residence in its own right is a connecting factor in a national legal system for purposes of taxation, jurisdiction, service of summons, voting etc. To read into residence volition as a necessary element is, as stated above, to mistake residence for domicile of choice, and that is the error which the High Court appears to have committed. Where residence is prescribed within a unified legal system as a qualifying condition, it is essential that the expression is so understood as to have the widest room for the full enjoyment of the right of equality before the law. Any construction which works to the disadvantage of the citizen lawfully seeking legitimate avenues of progress within the country will be out of harmony with the guaranteed rights under the Constitution, and such a construction must necessarily be avoided.

23. Viewed in this light ,we have no doubt that the construction placed by the High Court upon sub-cl. (b) of cl. 4 of the Notification is unsustainable. In our opinion, a person, such as the appellant, who resided in the State of Uttar Pradesh specifically for the purpose of undergoing a course of studies for not less than five years, albeit with the intention of finally returning to his home State, also comes within the meaning of the expression 'bone fide resident' as defined in the said clause."

Hon'ble Apex Court in the case of Bhagwan Dass and another v. Kamal abrol and others, AIR 2005 SC 2583, has considered the meaning of word "residence". Relevant paragraphs 10, 11 and 12 of the said judgment are beign quoted below:

"10. The court has further said in paragraph 13 that it is plain in the context of clause (ii) of Section 19 of the Act, that the word 'resides' meant actual place of residence and not a legal or constructive residence. It clearly does not indicate the place of origin. The words residence is flexible and has many shades of meaning but it must take its colour and content from the context in which it appears and it cannot be read in isolation. By this decision another dimension was added to the concept of

residence in the form of concept of de facto residence and the concept of de jure residence. The Supreme Court in this case has clearly distinguished between the concept of actual residence or de facto residence and legal residence or de jure residence. The actual residence means the place where the person is residing actually at a given point of time. On the other hand concept of de jure residence or the legal residence means the place at which the person is residing in law. The latter form of residence may or may not be the actual residence or the place where the person actually stays or reside. A person holding property or land in a particular place or city or having some ancestral roots to the city may be a resident of that particular place in the legal sense, but his actual residence will be the place where he is presently residing and coupled with the fact of animus manendi or an intention to stay for a considerable period. The concept of de facto and de jure residence can also be understood by the following example. If a person suppose has the residency certificate of a place say 'A', but actually for his living he stays at the place 'B'. Then de jure he can be said to be the resident of place 'A' but de facto he is the resident of the place 'B'.

11. In U.O.I. v. Dudh Nath Mishra and Ors., AIR 2000 SC 525, Division Bench of this Court has held that the word 'resides' has to be interpreted in the context of the purpose of the statute in which the words 'resides' is used. The word resident is read with word ordinarily hence making the phrase 'ordinarily resident'. It is clear that the person, before he can be said to be ordinarily residing at a particular place has to have an intention to stay at that place for a considerable length of time and it would not include a visit of a short or casual presence at that place. 2000 AIR SCW 56 : 2000 Lab IC 384

12. From the aforesaid analysis it is apparent that the word 'residence' is generally understood as referring to a person in connection with the place where he lives, and may be defined as one who resides in a place or one who dwells in a place for a considerable period of time as distinguished from one who merely works in a certain locality or comes casually for a visit and the place of work or the place of casual visit are different from the place of 'residence'. There are two classifications of the meaning of the word 'residence'. First is in the form of permanent and temporary residence and the second classification is based on de facto and de jure residence. The de facto concept of residence can also be understood clearly by the meaning of the word 'residence' as given in the Black Law Dictionary, 8th Edition. It is given that the word 'residence' means bodily presence as an inhabitant in a given place. Thus de facto residence is also to be understood as the place where one regularly resides as different to the places where he is connected to by mere ancestral connections or political connections or connection by marriage."

Hon'ble Apex Court in the case of Union of India and others v. Doodh Nath Prasad, AIR 2000 SC 525, has considered in extenso as to what would be the meaning of word "ordinarily residing". Paragraphs 12, 13, 14, 15, 17, 23, 25 and 26 are being extracted below:

"12. Section 20 which is part of the law enacted for purpose of election to Parliament or State Legislature contemplates many categories of persons including those who are in service. It lays down as to when they would be treated to be ordinarily residing in a particular constituency. Sub-section (1) and sub-section (1A) of Section 20 are couched in a negative language. Sub-section (1) of Section 20 provides that if a person holds or is in possession of a dwelling house in a particular constituency, he would not, merely on that ground, be deemed to be "ordinarily resident" in that constituency. Sub-section (1A) provides that temporary absence of a person from the place of his "ordinary residence," would be ineffective and a person would not cease to be an "ordinary resident" in that constituency merely for that reason. Thus, in determining the question whether person was ordinarily residing in a particular constituency, the factors mentioned in sub-section (1) and sub-section (1A) of Section 20 alone would not be determinative of the status and the question would have to be determined on a consideration of all other relevant factors. This is also clear from a reading of sub-section (7) of Section 20 which lays down that if a question arises as to whether a person was ordinarily residing in any constituency at the relevant time it would be determined with reference to all the facts of the case as also with reference to the Rules that may have been made in that behalf by the Central Govt. in consultation with the Election Commissioner.

13. The word "reside" has been defined in the Oxford Dictionary as "dwell permanently or for a considerable time to have once settled or usual abode; to live in or at a particular place." The meaning, therefore, covers not only the place where the person has a permanent residence but also the place where the person has resided for a "considerable time."

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14. In Black's Law Dictionary, 5th Edition, the word "reside" has been given the following meaning:

"Live dwell, abide, sojourn, stay, remain, lodge; to settle oneself or a thing in a place, to be stationed, to remain or stay, to dwell permanently or continuously, to have a settled abode for a time, to have one's residence or domicile; specifically, to be in residence, to have an abiding place, to be present as an element, to inhere as a quality, to be vested as a right."

In the same Dictionary the word 'residence' has been defined as under:

"Personal presence at some place of abode with no present intention of definite and early removal and with purpose to remain for undetermined period, not infrequently, but not necessarily combined with design to stay permanently. Bodily presence and the intention of remaining in a place, to sit down, to settle in a place, to settle, to remain, and is made up of fact and intention, the fact of abode and the intention of remaining, and is a combination of acts and intention. Residence implied something

more than mere physical presence and something (sic) than domicile."

15. If the two meanings referred to above are to be read along with the word "ordinarily", it becomes clear that a person, before he can be said to be "ordinarily residing" at a particular place, has to have an intention to stay at that place for a considerably long time. It would not include a flying visit of a short or casual presence at that place.

17. Considering the facts this case in the light of the statutory provisions contained in Section 20 of the Representation of the People Act, 1950 as also the provision contained in paragraph 5 of the "Instructions" since the parents of the respondent were admittedly, residing in District Howrah for more than 30 years, they would be treated to be ordinarily residing in that District and the mere fact that they held some property in a village in District Siwan in the State of Bihar would not affect their status. Learned counsel for the appellants then attempted to import the concept of domicile as understood in Private International law, in his arguments and contended that before a person can be said to be ordinarily residing at a particular place, he must satisfy all the requirements which go to constitute domicile. He further contended that since the respondent was born in a village in the State of Bihar, he shall be treated to have his domicile of nativity in that State we are not prepared to accept this contention.

23. Etymologically. "residence" and "domicile" carry the same meaning, inasmuch as both refer to the permanent home, but under Private International law, "domicile" carries a little different sense and exhibits many facets. In spite of having a permanent home, a person may have a commercial, a political or forensic domicile. 'Domicile' may also take many colours; it may be domicile of origin, domicile of choice, domicile by operation of law or domicile of dependance. In Private International Law domicile" jurisprudentially has a different concept altogether. It plays an important role in the Conflict of Laws. The subject has been elaborately considered by Dicey in his book "Conflict of Laws" (6th Edition) as also in another book by Phillimore on Domicile. Equally valuable discussion is to be found in Private international jurisprudence by Foote and by Westlake on Private International Law.

25. In view of the above, the concept of "domicile" as canvassed by learned counsel for the appellants with reference to change of nationality or change of domicile from one country to another, cannot be imported in the present case. Moreover, Domicile and "Residence" are relative concepts and have to be understood in the context in which they are used. having regard to the nature and purpose of the statute in which these words are used. We are principally concerned with the expression "ordinarily reside"

as used in the Note to Paragraph 5 of the "Instructions" and the expression "ordinarily resident" used in Section 20 of the Representation of the People Act, 1950. This Act and the Representation of the People Act, 1951 both deal with the election matters including delimitation of constituencies, right to contest the election as also right to vote in a constituency.

26. We have already explained the meanings of the words "ordinarily resident" and have found that notwithstanding that the warrants or the respondent lived at one time in a village in District Siwan

in the State of Bihar and that they owned some property also there, they had shifted to the State of West Bengal long ago and had been living there since then. For all intents and purposes, therefore, they be treated to be "ordinarily residing in the State of West Bengal." For the State of West Bengal, the President, in exercise of his powers under Article 341 (1) read with Article 366 (24) had already declared "Nuniya" Caste as a Scheduled Caste and, therefore, the respondent was, rightly treated to be a Scheduled Caste candidate and was rightly appointed against a Reserved vacancy, after being declared successful at the examination held by the UPSC for the Indian Administrative and Allied Services in 1966."

On the aforesaid parameters, once requirement was of ordinarily residing and carrying of occupation, here in the present case there was positive evidence to show and suggest that not only the petitioner has been ordinarily residing at Allahabad, but he is also having his occupation at Allahabad, as he is a practicing lawyer of this Court, and in this background he had moved application for grant of firearms licence at Allahabad. The District Magistrate, Allahabad, in the present case, has clearly misdirected himself by proceeding to mention that the facts have been concealed by the petitioner by not giving his original place of domicile. Requirement was of furnishing details of permanent address and not of furnishing details of original domicile. If details of original domicile was to be furnished, then there ought to have been specific column, in the format. Original domicile cannot be mixed up with permanent address. In column 6 permanent address was given of the house purchased by the petitioner and where petitioner ordinarily resides. Totally wrong presumption has been drawn by the District Magistrate, as such the impugned order passed by the District Magistrate deserves to be quashed.

Consequently, present writ petition is allowed. The impugned order dated 23.10.2009 is hereby quashed. The District Magistrate is directed to reconsider the application of the petitioner for grant of firearm licence, and take appropriate decision, in accordance with law, within three months from the date of receipt of certified copy of this order.

04.01.2010.

SRY